

HOUSE No. 834**The Commonwealth of Massachusetts**

PRESENTED BY:

Carmine Lawrence Gentile

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing same day registration of voters.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>1/13/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/12/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>3/26/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>3/10/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>2/14/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>1/27/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>6/9/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>2/8/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>2/27/2025</i>
<i>Mary S. Keefe</i>	<i>15th Worcester</i>	<i>3/4/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>4/7/2025</i>
<i>Hadley Luddy</i>	<i>4th Barnstable</i>	<i>8/29/2025</i>
<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>	<i>4/3/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/5/2025</i>
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>2/27/2025</i>
<i>Orlando Ramos</i>	<i>9th Hampden</i>	<i>5/23/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>3/22/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/21/2025</i>

<i>Amy Mah Sangiolo</i>	<i>11th Middlesex</i>	<i>3/26/2025</i>
<i>Greg Schwartz</i>	<i>12th Middlesex</i>	<i>9/18/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>1/27/2025</i>
<i>Joshua Tarsky</i>	<i>13th Norfolk</i>	<i>11/6/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>6/11/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>1/21/2025</i>

HOUSE No. 834

By Representative Gentile of Sudbury, a petition (accompanied by bill, House, No. 834) of
Carmine Lawrence Gentile and others relative to same day voter registration. Election Laws.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 688 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing same day registration of voters.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority
of the same, as follows:*

1 Chapter 51 of the General Laws is hereby amended by inserting after section 34 the
2 following section:-

3 Section 34A. (a) An individual who is eligible to vote may register as a voter by
4 appearing in person at the polling place for the precinct in which the individual resides, or by
5 appearing in person at an early voting site for the city or town in which the individual resides,
6 during the hours it is open for voting, by presenting proof of residence and by completing and
7 signing an affidavit of registration in the form prescribed by the state secretary, which shall
8 include substantially this oath: I certify that I am a citizen of the United States; am at least 18
9 years old; am not under guardianship that prohibits me from voting; am not temporarily or
10 permanently disqualified by law because of corrupt practices in respect to elections; have not and

will not vote in any other location within the commonwealth or elsewhere; and understand that giving false information is punishable by not more than 5 years imprisonment or a fine of not more than \$5,000, or both. The right to assistance in voting under section 79 of chapter 54 shall apply to individuals registering as voters under this section.

(b) As used in this section, the term “proof of residence” means one of the following, so long as it includes the name of the registrant and the address from which the registrant is registering:

(i) a valid photo identification including, but not limited to, a Massachusetts driver’s license or other state-issued identification card; or

(ii) other documentation demonstrating the name and address where the registrant resides and seeks to register including, but not limited to, a copy of a current utility bill, bank statement, government check, residential lease agreement, wireless telephone statement, paycheck, other government document or correspondence, a current student fee statement or other document from a post-secondary educational institution that verifies the student’s current address.

(c) Upon compliance with subsection (a), an election officer shall permit the registrant to vote at that primary or election. Any person who registers to vote under this section shall be registered as a voter at all later primaries and elections, subject to this chapter.

(d) A registrant who fails to present proof of residence shall be permitted to deposit a provisional ballot under section 76C of chapter 54, but shall within 2 business days after the primary or within 6 days after the election present proof of residence to the city or town clerk.

32 (e) The registrars may correct information supplied by the registrant to the extent
33 necessary to maintain the integrity of their records. If an affidavit is incomplete or if it appears
34 from the facts set forth in the affidavit that the registrant is not qualified to register as a voter, the
35 registrars shall proceed in accordance with section 47.

36 (f) As soon as practicable after the primary or election, the registrars shall add the
37 registrant's name, address and effective date of registration to the register of voters.

38 (g) A voter shall not change party enrollment at a primary under this section.

39 (h) Upon credible information or allegation of illegal voter registration, or credible
40 information or allegation of illegal multiple voting, the registrars shall proceed under section 48,
41 and the attorney general or the appropriate district attorney shall investigate the information or
42 allegation. Nothing in this subsection shall exclude enforcement by any means otherwise
43 provided by law.

44 (i) Violations of this section shall be punished under sections 8, 26 and 27 of chapter 56.